

17.	PC20200622	BASSEM MANSOUR V. JOHN DAVID STONE
JUDGMENT ON THE PLEADINGS		

The Notice does not comply with Local Rule 7.10.05. Repeated violations will be grounds for sanctions pursuant to Local Rule 7.12.13.

On May 7, 2026, Defendant/Cross-Complainant, N.L. Christensen Enterprises, Inc. dba Folsom Lake Marina ("Defendant"), filed a Motion for Judgment on the Pleadings. On June 12, 2026, Plaintiff, Baseem Mansour ("Plaintiff"), filed an Opposition. On June 15, 2026, Defendant, John David Stone ("Defendant Stone"), filed an Opposition. Defendant filed a Reply to Defendant Stone's Opposition and a Reply to Plaintiff's Opposition on June 16, 2026.

JUDICIAL NOTICE

Defendant asks the Court to take judicial notice of the following: 1) Defendant State of California Separate Statement of Undisputed Material Facts in Support of Defendant State of California's Motion for Summary Judgment; and 2) Plaintiff's Second Amended Complaint.

Judicial notice is a mechanism which allows the Court to take into consideration matters which are presumed to be indisputably true. California Evidence Code Sections 451, 452, and 453 govern the circumstances in which judicial notice of a matter may be taken. While Section 451 provides a comprehensive list of matters that must be judicially noticed, Section 452 sets forth matters which *may* be judicially noticed, including "[r]ecords of (1) any court of this state or (2) any court of record of the United States or of any state of the United States."

Section 452 provides that the court "may" take judicial notice of the matters listed therein, while Section 453 provides a caveat that the court "shall" take judicial notice of any matter "specified in Section 452 if a party requests it and: (a) Gives each adverse party sufficient notice of the request...to enable such adverse party to prepare to meet the request; and (b) Furnishes the court with sufficient information to enable it to take judicial notice of the matter." Cal. Evid. Code § 453.

While the requests made by Defendant fall within the purview of Section 452, matters which *may* be judicially noticed, the Court does find that Defendant provided Plaintiff, co-Defendants and the Court sufficient notice of the request and copies of the documents requested to be noticed. As such, Defendant has satisfied the requirements of Evidence Code § 453 and the request for judicial notice is granted.

JUDGMENT ON THE PLEADINGS

Background

On September 14, 2022, Plaintiff filed a Second Amended Complaint ("SAC") alleging the following causes of action: 1) Negligence (Motor Vehicle) (Defendant Stone); 2) Dangerous

Condition of Public Property (Defendant State of California); 3) Public Employee/Contractor Liability for Dangerous Condition (Defendant State of California); 4) Negligence (Premises Liability) (Defendants N.L. Christensen Enterprises, Inc. dba Folsom Lake Marina); and 5) Negligence (Defendants N.L. Christensen Enterprises, Inc. dba Folsom Lake Marina).

Legal Principles

When a motion for judgment on the pleadings is made by a defendant, the court must find that the complaint on its face does not state facts sufficient to constitute a cause of action against the defendant. Code of Civil Procedure § 438(c)(1)(B)(ii). The court may consider the allegations of the complaint and any matter of which the court is required to take judicial notice. “Where the motion is based on a matter of which the court may take judicial notice pursuant to Section 452 or 453 of the Evidence Code, the matter shall be specified in the notice of motion, or in the supporting points and authorities, except as the court may otherwise permit.” Code of Civil Procedure § 438(d).

In ruling on motions for judgment on the pleadings, the court need not treat as true contentions, deductions or conclusions of fact or law. *People ex rel. Harris v. Pac Anchor Transp., Inc.* (2014) 59 Cal.4th 772, 777.

A motion for judgment on the pleadings performs the same function as a general demurrer....” (*Cloud v. Northrop Grumman Corp.* (1998) 67 Cal.App.4th 995, 999, 79 Cal.Rptr.2d 544.) “It is axiomatic that a demurrer lies only for defects appearing on the face of the pleadings.” (*Harboring Villas Homeowners Assn. v. Superior Court* (1998) 63 Cal.App.4th 426, 429, 73 Cal.Rptr.2d 646.) Consequently, when considering a motion for judgment on the pleadings, “[a]ll facts alleged in the complaint are deemed admitted....” (*Lance Camper Manufacturing Corp. v. Republic Indemnity Co.* (1996) 44 Cal.App.4th 194, 198, 51 Cal.Rptr.2d 622.) “Presentation of extrinsic evidence is therefore not proper on a motion for judgment on the pleadings.” (*Cloud*, at p. 999, 79 Cal.Rptr.2d 544.) *Sykora v. State Department of State Hospitals* (2014) 225 Cal.App.4th 1530, 1534.

The hearing on demurrer may not be turned into a contested evidentiary hearing through the guise of having the court take judicial notice of affidavits, declarations, depositions, and other such material which was filed on behalf of the adverse party and which purports to contradict the allegations and contentions of the plaintiff. (*Tyree v. Epstein*, 99 Cal.App.2d 361, 221 P.2d 1002.)” *Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604-605.

If the allegations in the complaint conflict with attached exhibits, we rely on and accept as true the contents and legal effect of the exhibits. (*SC Manufactured Homes, Inc. v. Liebert* (2008) 162 Cal.App.4th 68, 83, 76 Cal.Rptr.3d 73; *Barnett v. Fireman's Fund Ins. Co.* (2001) 90 Cal.App.4th 500, 505, 108 Cal.Rptr.2d 657.)” *Chisom v. Board of Retirement of County of Fresno Employees' Retirement Association* (2013) 218 Cal.App.4th 400, 410.

Code of Civil Procedure § 439(a) provides a meet and confer requirement in which the moving party must meet in confer in person, by telephone, or by video conference for the purpose of determining whether an agreement can be reached. A determination by the court that the meet and confer process was insufficient shall not be grounds to grant or deny the motion for judgment on the pleadings.

The Declaration of Michael D. Shoeck provides that he contacted Plaintiffs' counsel on April 28, 2026, and was unable to reach her. He left a detailed voicemail and requested a return call. On April 29, 2026, he followed up with further detailed correspondence. Despite attempting to address the contentions, an agreement between counsel was not reached.

A motion for judgment on the pleadings may be granted with or without leave to amend. Cal. Civ. Pro. § 438(h)(1). Generally speaking, leave to amend is to be liberally granted. *Mendoza v. Continental Sales Co.* (2006) 140 Cal. App. 4th 1395 ("When there is a reasonable possibility that a defect in pleading can be cured by amendment, the trial court considering the motion for judgment on the pleadings abuses its discretion by not granting leave to amend..."). However, where the defective pleading is not reasonably susceptible to cure, it is proper for the court to decline leave to amend. *Id.* When leave to amend is not granted, "...then judgment shall be entered forthwith in accordance with the motion granting judgment to the moving party." Cal. Civ. Pro. § 438(h)(3).

Discussion

1. Timeliness

Plaintiff argues Defendant's motion should be denied because the initial trial date was July 22, 2025, therefore making the motion untimely pursuant to Code of Civil Procedure § 438.

Defendant asserts that Code of Civil Procedure § 438 provides sufficient grounds for the motion to proceed and to be granted.

Code of Civil Procedure § 438(e) provides that no motion may be made pursuant to this section if a pretrial conference order has been entered pursuant to Section 575, or within 30 days of the date the action is initially set for trial, whichever is later, unless the court otherwise permits.

"It is evident that whether to grant ... leave [to file a late motion for judgment on the pleadings] is a matter residing in the trial court's discretion to control litigation before it." (*Sutherland v. City of Fort Bragg, supra*, 86 Cal.App.4th at p. 25, fn. 4, 102 Cal.Rptr.2d 736.) ... "The interests of all parties are advanced by avoiding a trial and reversal for defect in pleadings." (*Ion Equipment Corp. v. Nelson* (1980) 110 Cal.App.3d 868, 877, 168 Cal.Rptr. 361.) *Burnett v. Chimney Sweep* (2004) 123 Cal.App.4th 1057, 1063 [20 Cal.Rptr.3d 562, 567].

Section 438, subdivision (e) “authorizes the trial court to permit late filings of such motions and does not specify any grounds which might serve to limit its power to do so.” (*Sutherland v. City of Fort Bragg* (2000) 86 Cal.App.4th 13, 25, fn. 4 [102 Cal. Rptr. 2d 736]; see *Burnett v. Chimney Sweep* (2004) 123 Cal.App.4th 1057, 1063 [20 Cal. Rptr. 3d 562] [§ 438, subd. (e) permits late filings of motions for judgment on the pleadings and does not impose a “good cause” requirement].) *Korchemny v. Piterman* (2021) 68 Cal.App.5th 1032, 1054 [284 Cal.Rptr.3d 104, 121].

The Court within its inherent discretion permits Defendant’s motion to proceed on the merits.

2. Meet and Confer

Plaintiff argues that Defendant’s meet and confer efforts were insufficient as Defendant failed to meet and confer five days before filing, nor is a voicemail and unspecified “correspondence” the statutorily required in-person, telephone, or video-conference meeting. Plaintiff asserts that the later May 13/May 14, 2026, filings do not cure the defect. Additionally, Defendant failed to file the statutory extension declaration pursuant to § 439(a)(2).

Defendant contends that counsel contacted Plaintiff multiple times in an effort to meet and confer in advance of filing and cannot be held responsible for Plaintiff’s unresponsiveness.

Code of Civil Procedure § 439(a) requires that before filing a motion for judgment on the pleadings pursuant to this chapter, the moving party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to the motion for judgment on the pleadings for the purpose of determining if an agreement can be reached that resolves the claims to be raised in the motion for judgment on the pleadings. The parties shall meet and confer at least 5 days before the date a motion for judgment on the pleadings is filed. **A determination by the court that the meet and confer process was insufficient shall not be grounds to grant or deny the motion for judgment on the pleadings.** (emphasis added).

The Court finds Defendant’s meet and confer efforts were insufficient; however, Code of Civil Procedure § 439(a)(4) expressly instructs such deficiencies shall not be grounds to deny the motion.

3. Negligence-Premises Liability and Negligence

Defendant argues that Plaintiff’s claims fail on the grounds that Defendant, who has an interest in the Subject Property, did not owe a duty of care to Plaintiff to keep the premises safe for entry or use by others, or to give any warning of hazardous conditions on those premises because Plaintiff entered for a recreational purpose pursuant to Civil Code § 846.

Defendant asserts that Defendant State of California's Separate Statement of Undisputed Material Facts in Support of Defendant State of California's Motion for Summary Judgment provides the basis for Plaintiff's conclusive admission that Plaintiff entered the Subject Premises for a recreational purpose, which render the causes of action defective for failing to state facts sufficient to constitute a cause of action.

Plaintiff and Defendant Stone contend that Defendant's reliance on selected portions of Defendant's State of California's summary-judgment separate statement and request to treat those assertions as Plaintiff's conclusive admissions is improper as it is not evidence. In reply, Defendant argues it is undisputed that Plaintiff admitted during his deposition that on the date of the incident, he rode his bicycle from his home to a trailhead that enters the Browns Ravine Recreation Area.

In considering whether a defendant is entitled to judgment on the pleadings, **we look only to the face of the pleading under attack....** All facts alleged in the complaint are admitted for purposes of the motion, and the court determines whether those facts constitute a cause of action. **The court also may consider matters subject to judicial notice.** *Harris v. Grimes* (2002) 104 Cal.App.4th 180, 185 [127 Cal.Rptr.2d 791, 795] (emphasis added).

While we may take judicial notice of court records and official acts of state agencies (Evid.Code, § 452, subds.(c), (d)), **the truth of matters asserted in such documents is not subject to judicial notice.** (*Sosinsky v. Grant* (1992) 6 Cal.App.4th 1548, 1564–1565, 8 Cal.Rptr.2d 552.) *Arce v. Kaiser Foundation Health Plan, Inc.* (2010) 181 Cal.App.4th 471, 482 [104 Cal.Rptr.3d 545, 556] (emphasis added).

Among the matters of which judicial notice may be taken are judicial admissions, i.e., admissions and inconsistent statements in the same case. In other words, “a court may take judicial notice of admissions or inconsistent statements by [a party] in earlier pleadings in the same lawsuit” and “may *disregard conflicting factual allegations* in the [challenged pleading].” (Weil & Brown, *supra*, ¶ 7:47, citing *Larson v. UHS of Rancho Springs, Inc.* (2014) 230 Cal.App.4th 336, 344, 179 Cal.Rptr.3d 161 [demurrer]; *Pang v. Beverly Hospital Inc.* (2000) 79 Cal.App.4th 986, 989-990, 94 Cal.Rptr.2d 643 [motion for judgment on pleadings].) *Alameda County Waste Management Authority v. Waste Connections US, Inc.* (2021) 67 Cal.App.5th 1162, 1174–1175 [283 Cal.Rptr.3d 171, 178], as modified (Sept. 8, 2021).

Not every document filed by a party constitutes a pleading from which a judicial admission may be extracted. Code of Civil Procedure section 420 explains that pleadings serve the function of setting forth “the formal allegations by the parties of their respective claims and defenses, for the judgment of the Court.” (Code Civ. Proc., § 420.) “The pleadings allowed in civil actions are complaints, demurrers, answers, and cross-complaints.” (Code Civ. Proc., § 422.10.) When these pleadings contain allegations of fact in support of a claim or defense, the opposing party may rely on the factual statements as judicial admissions. (*St. Paul Mercury, supra*, 111 Cal.App.4th at

p. 1248, 4 Cal.Rptr.3d 416.) *Myers v. Trendwest Resorts, Inc.*, (2009) 178 Cal.App.4th 735, 746 [100 Cal.Rptr.3d 658, 666], as modified (Nov. 20, 2009)

Neither a motion for summary judgment nor its accompanying statement of undisputed facts constitutes pleadings within the meaning of Code of Civil Procedure section 422.10. Motions for summary judgment do not serve the same purpose as pleadings in setting forth factual allegations. To the contrary, motions for summary judgment by defendants seek to show that they are entitled to dismissal as a matter of law. (Code Civ. Proc., § 437c; *Myers I, supra*, 148 Cal.App.4th at p. 1409, 56 Cal.Rptr.3d 501.) *Id.* at 747...**[S]eparate statements of undisputed facts in support of a motion for summary judgment or adjudication make no binding judicial admissions.** *Id.* (emphasis added).

The Court accordingly finds that the contents of Defendant State of California's Separate Statement do not constitute judicial admissions. Defendant's reliance upon Plaintiff's deposition transcript to establish an admission is improper on a motion for judgment on the pleadings.

Defendant further argues that the SAC admits that Defendant had a control interest of the area and there is no dispute that Plaintiff's injuries were a result of recreational activities in or within the Subject Area. Plaintiff has not alleged facts sufficient to bring this action within any of § 846's statutory exceptions.

Plaintiff argues that Civil Code § 846 does not bar the SAC and the statutory exceptions cannot be negated on the face of the pleadings. The SAC adequately alleged Defendant had actual knowledge or constructive knowledge of the dangerous vegetation and failed to protect against it. To the extent Defendant contends the exceptions cannot apply, that contention requires an evidentiary record.

Defendant Stone similarly argues that determining the applicability of Civil Code § 846 requires findings of fact. Defendant Stone asserts the question under consideration in a motion for judgment on the pleading is whether or not the SAC sufficiently states a claim against Defendant, not whether Plaintiff has already mustered adequate evidence to rebut an affirmative defense

Under section 846, an owner of any estate or other interest in real property owes no duty of care to keep the premises safe for entry or use by others for recreational purposes or to give recreational users warning of hazards on the property, unless: (1) the landowner willfully or maliciously fails to guard or warn against a dangerous condition, use, structure or activity; (2) permission to enter for a recreational purpose is granted for a consideration; or (3) the landowner expressly invites rather than merely permits the user to come upon the premises. *Ornelas v. Randolph* (1993) 4 Cal.4th 1095, 1099–1100 [17 Cal.Rptr.2d 594, 596, 847 P.2d 560, 562].

The Court is unpersuaded by Defendant's argument that the SAC provides all elements establishing immunity under Civil Code § 846. Plaintiff's allegation that Defendant had actual or constructive knowledge of the dangerous condition and failed to protect against it, accepted as true, is sufficient to raise the statutory exceptions which is a factual question that cannot be resolved on the face of the pleadings. Defendant's motion for judgment on the pleadings is denied.

TENTATIVE RULING #17:

DEFENDANT'S MOTION FOR JUDGMENT ON THE PLEADINGS IS DENIED.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 621-6551 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).

NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY TELEPHONE OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; EL DORADO COUNTY LOCAL RULE 8.05.07. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.

LONG CAUSE HEARINGS MUST BE REQUESTED BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED AND THE PARTIES ARE TO PROVIDE THE COURT WITH THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. LONG CAUSE ORAL ARGUMENT REQUESTS WILL BE SET FOR HEARING ON ONE OF THE THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. THE COURT WILL ADVISE THE PARTIES OF THE LONG CAUSE HEARING DATE AND TIME BY 5:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. PARTIES MAY PERSONALLY APPEAR AT THE HEARING.